JBAV 内部限定資料

GOVERNMENT

Ref. No. /2015/ND-CP

SOCIALIST REPUBLIC OF VIETNAM
Independence-Freedom-Happiness

Hanoi, [date], 2016

DRAFT

DECREE
Providing details and implementing guide for specific provisions of the Amendments to the Value Added Tax Law, Excise Tax Law and Tax Administration Law, and amendments to specific provisions of various Decrees

Pursuant to the Government Organization Law of Dec. 25, 2001;

Pursuant to the Tax Administration Law No. 78/2006/QH11; Law No. 21/2012/QH13, revising specific provisions of the Tax Administration Law;

Pursuant to the Value Added Tax Law No. 13/2008/QH12; Law No. 31/2013/QH13, revising specific provisions of the Value Added Tax Law;

Pursuant to the Excise Tax Law No. 27/2008/QH12; Law No. 70/2014/QH13, revising specific provisions of the Excise Tax Law;

Pursuant to Law No. 106/2016/QH13, revising specific provisions of the Value Added Tax Law, Excise Tax Law and Tax Administration Law;

In consideration of proposals by the Minister of Finance;

The Government hereunder enacts this Decree providing implementing details for Law No. /2016/QH13, revising specific provisions of the Value Added Tax Law, Excise Tax Law and Tax Administration Law.

Article 1. Amendments and updates to the government's Decree No. 209/2013/ND-CP, Dec. 18, 2013, providing details and implementing guide for specific provisions of the Value Added Tax Law, as revised by the government's Decree No. 12/2015/ND-CP, dated Feb. 12, 2015

1. The first paragraph of Article 3 and Article 3.1 shall be revised as follows:

"**Article 3. Non-applicability**

Non-applicability of value added tax is subject to Article 5, Value Added Tax Law, Article 1.1, Amendments to the Value Added Tax Law, and Article 1.1, Law No. 106/2016/QH13, revising specific provisions of the Value Added Tax Law, Excise Tax Law and Tax Administration Law.

1. Products referred to in Article 5.1, Value Added Tax Law, revised in Article 1.1, Law No. 106/2016/QH13, revising specific provisions of the Value Added Tax Law, Excise Tax Law and Tax Administration Law, that have passed regular preliminary processing, including cleaned, sundried, mechanically dried, hulled, deseeded, cut, salted, cold stored or maintained in other regular storage forms."

2. Article 3.2 shall be revised as follows:

"3. Medical examination and treatment services referred to in Article 5.9, Value Added Tax Law, encompass transportation, testing, medical imaging, blood and blood components used for patients.

Care for the elderly and people with disability referred to in Article 1.2, Amendments to Article 1, Law No. 106/2016/QH13, revising specific provisions of the Value Added Tax Law, Excise Tax Law and Tax Administration Law, encompasses medical and nutritional care, and provision of access to

activities as culture, sports, entertainment, physiotherapy and rehabilitation for the elderly and people with disability."

3. Article 3.6 shall be revised as:

"6. Public passenger transportation referred to in Article 5.16, Value Added Tax Law, encompasses public passenger transportation by bus, electric vehicles and trains on intraprovincial routes, within urban areas and on contiguous extraprovincial routes as defined by relevant regulatory agencies."

4. Article 3.11 shall be revised as:

"11. Export products being natural resources and minerals excavated but not processed into other products; export products being goods manufactured from natural resources and minerals with the gross value of the natural resources and minerals, plus energy costs, including the cost of fuel, power and thermal energy, accounting for 51% of the cost price or more.

The Ministry of Finance shall, as a lead agency, work with relevant agencies to provide guidance pertaining to the provisions of this paragraph."

5. Article 4.4 shall be revised as:

"4. For electricity from hydropower sources that are financially dependent of the Vietnam Electricity Group, including electricity from financially dependent hydropower plants affiliated to the Generation Companies under Vietnam Electricity, the amount subject to value added tax used to determine the payable value added tax at the municipality where the power plant is located shall equal 40% of the mean electricity consumption sales price for the previous year, exclusive of value added tax."

6. Article 6.1.dd shall be revised as:

"dd) Non-applicability of 0% value added tax rate includes:
- Technology transfer and offshore transfer of intellectual property
- Offshore reinsurance services
- Offshore extension of credit
- Offshore equity assignment
- Offshore securities investment
- Financial derivatives
- Postal and telecommunication services
- Export products referred to in Article 1.1 of this Decree
- Goods and services provided to unregistered business individuals in non-tariff zones
- Tobacco, alcohol and beer imported and subsequently exported."

7. Article 10 shall be revised as follows:

"Article 10. **Value added tax rebate**

1. Business entities paying value added tax via the invoice-based method of collection, in case the input value added tax is not fully deducted within the month (monthly filing) or quarter (quarterly filing), may carry forward the tax credit to the next cycle; in case of accumulation till the end of the tax cycle but value added tax not fully deducted still remains, the tax payer may choose to offset the non-deducted value added tax to deductible expenses when determining the earnings subject to corporate income tax payment.

2. Business entities are entitled to tax rebate for investment projects as described under:

a) New business entities as spinoff from an investment project that has completed business registration and registration to pay value added tax via the invoice-based method of collection, or oil exploration and development projects still in the development, non-operational phase, in case the

development phase lasts for 01 year or longer, are entitled to value added tax rebate for the goods and services used for project development purposes by the year, except those referred to in (c) of this paragraph. In case the accumulated value added tax of the goods and services purchased for project development purposes is VND300 million or more, value added tax rebate shall be allowed.

b) Active business entities that are subject to value added tax payment via the invoice-based method of collection engaging in new investment projects (except investment projects that build houses for sales) in a province or central-level city other than the province/city where they are headquartered, still in the develop and non-operational phase, not yet completing business and tax registration, having the value added tax amount for goods and services purchased for project development purposes of VND300 million or more, shall be entitled to value added tax rebate, except those referred to in (c) of this paragraph. The said business entities shall make filing and submit a different rebate application for the new investment project.

c) Business entities not entitled to value added tax rebate, instead, may carry forward the non-deducted tax of investment projects, in line with investment laws, to the next cycle in the following events:

- Investment projects of business entities that are not entitled to value added tax rebate as specified in Article 13.1.a, Value Added Tax Law, revised by Law No. 106/2016/QH13, being investment projects of business entities that fail to pay in sufficiently the registered capital; do business in conditional business or investment sector without a license to do business in such conditional business/investment sector in line with applicable investment laws; or have their conditional investment/business license withdrawn while they are in business.

- Investment projects for natural resources and minerals mining, including investment projects for metal and non-metal mining licensed from July 1, 2016, or investment projects for manufacture of products and goods, in which the gross value of metal and nonmetal products, plus energy cost, including cost for fuel, electricity and thermal energy accounts for 51% of the cost price or more, in line with guidance for investment projects of the Ministry of Finance;

- Investment projects of business entities that have not filed for value added tax rebate within 30 days since start of business activities, except for business entities starting to do business when the investment projects still have work in progress that is entitled to value added tax rebate for the non-deducted input value added tax of the investment projects of VND300 million or more.

3. Business entities in the month (monthly filing) or quarter (quarterly filing) having export goods and services with non-deducted input value added tax of VND300 million or more are entitled to value added tax rebate by the month or quarter; if in the month or quarter, the non-deducted input value added tax is less than VND300 million, rebate can be done in the next month or quarter; if the business has both export goods and services, and goods and services for domestic consumption, it must keep separate accounts for the input value added tax for export goods and services; if such account separation is impossible, the input tax shall be determined based on the export goods and services as a percentage of the total revenue for goods and services.

Business entities are not entitled to tax rebate if goods and services bound for export are not actually exported in the designated customs jurisdiction under the Customs Law and its implementing documents.

The revenue service shall apply “rebate first, check later” for taxpayers manufacturing export goods who have not been in breach of tax and customs laws in two consecutive years, and taxpayers who are not among high-risk groups as defined by the Tax Administration Law.

4. Business entities paying value added tax via the invoice-based method of collection are entitled to value added tax rebate upon ownership change, business type conversion, acquisition,

merger, division, spin-off, wind-up, bankruptcy, or termination of operation if value added tax excessive payment or non-deducted input value added tax exist.

Business entities in a project development, non-operational stage that wind up, go bankrupt or terminate their operation without incurring output value added tax from core businesses within the relevant investment project, must not revise the declared, deducted or rebated value added tax. Filing and tax determination in case of investment project assignment, sales of investment project assets, or conversion of investment project lines of business shall follow guidance of the Ministry of Finance.

5. Value added tax rebate for programs/projects involving use of non-refundable official development assistance (ODA) or non-refundable aid, or humanitarian aid shall be done as specified below:

a) The owners of the program/project or main contractor or entity selected by the foreign sponsor to run the program/project that involves use of non-refundable official development assistance (ODA) funding are entitled to rebate of the value added tax paid for goods and services purchased in Vietnam for use in such program/project.

b) Vietnamese organizations using funds from non-refundable aid or humanitarian aid provided by foreign organizations or individuals to purchase goods and services for use in non-refundable or humanitarian aid programs/projects in Vietnam are entitled to rebate of the value added tax paid for such goods and services.

6. Parties with diplomatic immunity under applicable laws on diplomatic immunity purchasing goods and services in Vietnam for personal use are entitled to rebate of the value added tax amount stated in the value added invoice or receipt showing the paid amount with value added tax included.

7. Non-nationals and Vietnamese nationals living on a resident basis in another country, carrying a passport or entry paper granted by a relevant foreign agency are entitled to tax rebate for goods purchased in Vietnam carried with them on exit.

8. Business entities having a value added tax rebate ruling by a relevant authority under applicable law, and eligible events of value added tax rebate under international treaties that the Socialist Republic of Vietnam is a party to."

Article 2. Amendments and updates to paragraphs 1 and 2, Article 4, Decree No. 108/2015/ND-CP, dated Oct. 28, 2015, providing details and implementing guide for specific provisions of the Excise Tax Law and Amendments to the Excise Tax Law

"Article 4. Tax base

1. As for domestically made goods and imported goods, the tax base is the sales price of the manufacturer or importer. In case the sales price of the manufacturer or importer is not comparable to the regular market trading price, the revenue service shall take over and fix the tax base in line with the Tax Administration Law. The excise tax base shall be determined as follows:

Excise tax base = $\frac{Sales\ price,not\ including\ VAT-Environmental\ protection\ duty\ (if\ any)}{1+Excise\ tax\ rate}$

Where, the sales price, not including value added tax is determined according to applicable laws on value added tax.

a) In case a manufacturer or importer sells goods that are subject to excise tax through a financial dependent subsidiary, the excise tax base shall be the sales price of that financially dependent subsidiary. In case a manufacturer or importer sells goods through an agent that adopts the exact sales price of the manufacturer or importer and takes a commission only, the excise tax base shall be the sales price of the manufacturer or importer, inclusive of commission.

b) In case goods subject to excise tax are sold to commercial establishments having parent-daughter company relationships or being subsidiaries in a same parent company with the manufacturer or importer, or commercial establishments in a partnership, the excise tax base must not be lower than a percentage (%) of the mean purchase price of such commercial establishments buying directly from the manufacturer or importer. In case a manufacturer or importer has many middle commercial establishments having a parent-daughter company relationship, or being subsidiaries of a same parent company or having a partnership relationship, the excise tax base must not be lower than a percentage (%) of the mean sales prices that the commercial establishments offer other commercial establishments that have no parent-daughter company relationship, or subsidiary-subsidiary relationship, or partnership relationship with the manufacturer or importer. Particularly for automobiles, the mean sales price of commercial establishments for comparison purposes is the sales prices of the vehicles, not inclusive of options and add-on equipment or parts that commercial establishments install upon customers' request.

Manufacturers, importers and commercial establishments are deemed to have a partnership relationship for the purposes of this provision if:

- A business directly or indirectly holds at least 20% of the equity of the owner of the other business;
- Both businesses have at least 20% of the owner's equity held directly or indirectly by a third party;
- Both businesses hold directly or indirectly at least 20% of the owners' equity of a third party.

In case the manufacturer's or importer's sales price for goods subject to excise tax is lower than a percentage (%) of the mean sales price of commercial establishments, the excise tax base shall be the one fixed by the revenue service in line with applicable tax administration laws.

The percentage (%) referred to in this paragraph is:

- For automobiles: 7%
- For other goods subject to excise tax: 10%.

2. For import goods being imported, the excise tax base shall be determined as follows:

Excise tax base = Import tax base + import duty

The import tax base is determined in accordance with applicable laws on import and export duty. In case of duty exempt goods, the tax base shall not include the exempted or reduced duty."

Article 3. Amendments and updates to Article 20.2.a, Decree No. 218/2013/ND-CP, Dec. 26, 2013, providing details and implementing guide for specific provisions of the Corporate Income Tax Law, revised by Decree No. 12/2015/ND-CP

"a) Businesses with investment projects having obtained an Investment license, Investment certificate or Business registration certificate (for in-country investment projects that entail creation of a new business with investment capital of less than VND15 billion and do not fall under the List of conditional investment sectors), that are within a corporate income tax break period under applicable laws and regulations on corporate income tax prior to this Decree coming into effect, may continue to benefit from such tax break for the remaining time in line with the said laws and regulations. In case the incentives provided in this Decree are higher than the existing tax breaks (including those qualified but not yet actually benefiting from incentives), the incentives offered by this Decree shall apply instead for the remaining time. In case of those benefiting from incentives offered for greenfield investments, such incentives shall continue to be in effect. In case of those benefiting from incentives for business expansion, such incentives for business expansion shall continue, or greenfield investment incentives may be used instead if the criteria for greenfield investment consideration are met in line with this Decree.

In case a business has an investment project constituted prior to Jan. 1, 2015, but does not qualify for incentives in line with laws and regulations on corporate income tax prior to this Decree

coming into effect, while qualifying for the incentives offered by Law No. 71/2014/QH13, the incentives offered in this Decree shall apply instead for the remaining time from the tax cycle in 2015."

Article 4. Amendments and updates to Decree No. 83/2013/ND-CP, July 22, 2013, providing implementing details for specific provisions of the Tax Administration Law and Amendments to specific provisions of the Tax Administration Law, revised by Decree No. 91/2014/ND-CP and Decree No. 12/2015/ND-CP on tax administration

1. Revising Article 28a as follows:

"**Article 28a. Dealing with late payment of tax**

a) Application of late tax payment levies at 0.03% per day on the tax arrears:

If a taxpayer pays his/her tax later than normally required, or later than an extended timeline or one stated in the notice of the revenue service, or timeline in the revenue service's ruling;

If a taxpayer pays less tax than he/she should due to miscalculation of the payable tax, exempted tax, reduced tax or rebate tax from previous tax cycles;

If commercial banks, other credit institutions and service providers as defined by law, the State Treasury, revenue service or agencies delegated by the revenue service to collect taxes have collected tax money, arrears fines or levies from late taxpayers, but delay in paying the collected tax to the state budget as required, they shall pay late tax payment levies determined based on the collected tax amount that is not paid on time to the state budget.

Arrears that exist prior to July 1, 2016 that are not paid to the state budget by taxpayers, including arrears recollected following audit and inspection by relevant authorities, shall also be subject to late payment levies at the rate specified in this paragraph from July 1, 2016.

In case a taxpayer provides goods and services paid for by government funding but has not received the payment, thus fails to pay taxes on time, resulting in arrears, he/she shall not have to pay arrears levies determined based on the arrears amount. However, the arrears levies exempted shall be limited only to no more than the government funding amount not yet paid to the taxpayer and for the period when such payment from the state budget has not been made.

Entities using government funding are those maintaining an account at the State Treasury and entitled to using an estimated amount of the state budget in line with the State Budget Law.

b) Taxpayers making wrong filing resulting in underestimation of the payable tax, who self-consciously take corrective actions by paying in full the payable tax prior to relevant authorities' detection shall have to pay arrears levies, but are exempted from fines for infringements of tax-related administrative procedures, short payment of tax or tax evasion.

c) Taxpayers shall self-consciously determine the arrears levies based on the amount of tax arrears, days of arrears and arrears levy level in line with the provisions of (a) in this paragraph.

In case a taxpayer fails to self-consciously determine or incorrectly determine the arrears levies, the revenue service shall instead determine the arrears levies and notify the same to the subject taxpayer.

d) If thirty days after the tax payment due date and the taxpayer has not paid the due tax and arrears levies, the tax administration agency shall inform the taxpayer the arrears amount and arrears levies.

dd) Taxpayers having to pay arrears levies in accordance with the provisions of this paragraph may request exemption of the arrears levies in case they are affected by disaster, fire, unexpected outbreaks or diseases, terminal illnesses or other force majeure events. Reference to the applicable list of terminal illnesses may be made to other relevant laws and regulations.

The arrears levy waiver amount shall not exceed the value of the assets or goods affected by the aforementioned causes; or medical costs incurred in case of individuals acquiring terminal illnesses.

Force majeure refers to effects of events not caused by the taxpayer, who encounters such events against his/her will, including influence caused by a regulatory agency (policy uncertainty, late response); influence from a third party (high loan interest from a credit institution at more than 15%, resulting in poor business performance, and so on)."

2. Updates to Article 29.6

"6. In case a taxpayer has excessive payment that is greater than or equals his/her debt, enforcement against such tax debtor may be postponed. The revenue service shall offset or make adjustments in line with applicable rules to ensure that taxpayers do not incur arrears."

3. Amendments to Article 51.2.a

"a) Ruling on fixing taxes; notice for collection of tax arrears, fines and arrears levies;"

4. Article 39.2 shall be revised as:

"2. Obligations of taxpayers allowed to pay arrears over time

In the allowed period for piecemeal payment of arrears, the subject taxpayer still has to pay arrears levies at 0.03% per day of the arrears amount.

The subject taxpayer has the obligation to pay in full the tax arrears and arrears levies promised."

5. Annulment of Article 38 (related to export and import deadlines)

6. Amendments and updates to paragraph 1, and (b) and (h), paragraph 2, Article 41 as follows:

"1. Tax administrative agencies shall adopt "rebate fist, check later" in line with applicable tax laws and regulations, except for export goods manufacturers purchasing finished products, materials, supplies, fuels, energy, telecoms services and water using electronic invoices and using electronic transactions in tax payment; and other cases as specified in paragraph 2 of this Article.

2. Application of "check first, rebate later"

"b) Taxpayers applying for first time rebate, except requests for personal income tax rebate and value added tax rebate for investment projects of business entities that have been using electronic transactions in tax payment and used electronic invoices; unless taxpayers lodging tax rebate applications to tax administration agencies for the first time but are not eligible for tax rebate according to applicable laws, the next rebate application still counts as the first time tax rebate application."

"h) Goods imported under licenses and general imported goods must meet prevailing requirements for phytosanitary conditions, food safety and quality control, except goods being materials imported for production of export goods."

7. Article 42.2.a shall be revised as follows:

"a) Exemption and reduction of excise tax, royalties and personal income tax for taxpayers affected by disasters, fire and unexpected accidents, making them unable to pay due taxes under prevailing laws; exemption of non-farm land rents, farming land use fees, land and water surface rent, and ownership tax for taxpayers in line with prevailing laws; exemption of taxes for households and individuals having annual non-farm land use tax of VND50,000 or less; the Ministry of Finance provides details on tax exemption and reduction specified in this section."

8. Amendments and updates to Article 48.a

"1. Taxpayers being business entities using electronic services provided by the revenue service (taxpayer registration, filing, tax payment, search and transmission of tax information), except special cases as defined by the Ministry of Finance.

For taxpayers (both organizations and individuals) engaging in large scale business enterprises, doing business in hospitality, supermarket sector and several other goods and services that must use invoices or automated billing systems, the revenue service shall have in place appropriate supervision and governance means.

The following taxpayers who meet required information technology infrastructure standards must use electronic invoices and periodically transmit invoice data to the revenue service according to the revenue service's roadmap, including:

- Business entities incorporated under current laws, engaging in large scale business undertakings, and over large areas, dealing in goods and services being inputs for other manufacturing or trading processes, and using a large number of invoices;

- Trade and service businesses, passenger and freight transporters, tax exempt goods sellers, export goods makers, fuel traders, manufacturers and traders of goods and services subject to excise tax;

- For manufacturers and traders of tobacco, alcohol and beer using printed stamps or electronic stamps as required by law: tobacco, alcohol and beer stamps shall be traceable among the manufacturers and importers with the revenue service for governance purposes.

In case the taxpayers referred to in the above provision choose not to invest in required information technology to use electronic invoicing, electronic invoices provided by an electronic invoicing service provider shall be used.

For some other cases, use of electronic invoices and transmission of invoicing data shall follow guidance of the Ministry of Finance.

Taxpayers being business entities not subject to using electronic invoices but in need of transmitting invoicing data to the revenue service shall use electronic invoices with validation numbers of the revenue service provided by an electronic invoicing service provider with a validation number.

Taxpayers being private individual businesses engaging in large scale business undertakings using electronic invoices with validation numbers of the revenue service provided by an electronic invoicing service provider with validation numbers and in line with a revenue service's roadmap, shall use electronic invoices with validation numbers provided by an electronic invoicing service provider with validation numbers.

The revenue service considering rebate request from entities and individuals purchasing goods and services, using electronic invoices and having transmitted invoicing data to the revenue service, or using electronic invoices with validation numbers, may consider waiver of field inspection for the input VAT involving the use of electronic invoices with invoicing data transmitted to the revenue service, or electronic invoices with validation numbers. The Ministry of Finance provides details on this regulation.

Relevant authorities exercising their public sector management roles in the inspection, audit or inspection and monitoring and goods in transit are responsible to have in place necessary systems and put in use electronic means and data to verify invoices without the need to ask institutional and individual taxpayers to convert electronic invoices or electronic invoices with validation numbers to paper-based forms. The Ministry of Finance provides details on this regulation.

The government encourages eligible security consulting service providers to get involved in the provision of electronic invoices and electronic invoices with validation numbers of the revenue service.

Tax administration agencies, tax officials and other organizations and individuals pertaining to the generation, issuance and use of electronic invoices and electronic invoices with validation numbers of the revenue service must keep confidential taxpayers' information provided on electronic invoices and electronic invoices with the revenue service's validation numbers in line with the Tax Administration Law and Electronic Transaction Law.

The Ministry of Finance provides details on this provision."

Article 5. Amendments and updates to Decree No. 129/2013/ND-CP, Oct. 16, 2013

1. Updates to paragraphs 3a and 3b, Article 36

"3a. On the expiry of the enforcement ruling by giving a notice voiding an invoice, if the subject taxpayer still refuses to pay or pays less than the required amount of tax arrears to the state budget, while the revenue service has not applied the next enforcement act, the revenue service may continue releasing another enforcement ruling by serving notice voiding an invoice.

3b. While the invoice voiding notice enforcement act is in progress, if the subject taxpayer files a written request asking permission to use individual invoices for every lot of products or completed work items to secure funding to pay salaries and expenses so that business operation is not interrupted, the revenue service shall accept to allow the taxpayer to use individual invoices in such manner, providing that the taxpayer promises in writing to pay in full immediately any tax amounts incurred on the individual invoices used, and pay part of the arrears, equaling no less than 10% of the revenue of the invoices used.

In some special instances, when a taxpayer files in written request once but is allowed to use multiple invoices, the revenue service shall continue allowing the taxpayer to use the invoices as requested, providing that the taxpayer promises in writing to pay in full immediately any tax amounts incurred on the individual invoices used, and the entire arrears committed.

If the taxpayer is in breach of such promise, the revenue service shall immediately terminate use of individual invoices by the taxpayer."

2. Updates to Article 54.4

"4. In case a taxpayer under enforcement acts fail to pay in full arrears, in line with applicable enforcement ruling to the state coffers, if the subject taxpayer clear customs for export and import goods, the revenue service shall request the customs office where the taxpayer is headquartered to also issue enforcement ruling to suspend customs clearance procedures for such export and import goods."

Article 6. Amendments and updates to the government's Decree No. 67/2013/ND-CP, June 27, 2013, providing details and implementing guide for specific provisions of the Tobacco Control Law, related to sales of tobacco

1. Amendments and updates to Article 37

"Article 37. Tobacco product stamps

1. Tobacco products made for domestic consumption must use tax stamps on the package in line with prevailing laws and regulations.

2. Tobacco products made for export, promotion and exhibition purposes in other countries are not subject to tax stamping requirements under Vietnamese law.

3. Tax stamps used on tobacco products made for consumption within Vietnam shall be supplied to businesses having a license for tobacco production. The number of tax stamps sold annually to these businesses shall not exceed the allowed number.

4. Imported tobacco products for consumption within Vietnam shall have tax stamps on the package. Stamps on imported tobacco products are sold to businesses having a license for tobacco importation. The number of tax stamps sold annually to allowed tobacco importers shall not exceed the allowed import quantity.

5. The Ministry of Finance shall print, release and affix tax stamps for subject businesses as required by law. The price of tax stamps must sufficiently cover the printing and release costs in line with applicable rules.

The Ministry of Finance provides details on this Article."

2. Amendments and updates to Article 46.1

"1. Printing, release and selling tax stamps to businesses in line with the provisions of this Decree and other relevant prevailing rules."

Article 7. Effectiveness and implementing responsibility

1. This Decree comes into effect from July 1, 2016.

2. Article 4.6 of this Decree comes into effect from September 1, 2016.

3. The Ministry of Finance provides implementing guide for this Decree.

4. Ministers, heads of ministerial level agencies, heads of governmental bodies, chairpersons of the People's Committee of provinces and central-level cities, and relevant organizations and individuals are responsible to implement this Decree.

C/c:
- Party Central Secretariat;
- Prime Minister, Vice Prime Ministers;
- Ministries, ministerial level agencies, governmental bodies;
- People's Councils, People's Committees of provinces and central-level cities;
- Party's central headquarters and committees;
- General Secretary's office;
- State President's office;
- Ethnicity Council and National Assembly's committees;
- National Assembly office;
- People's Supreme Court;
- People's Supreme Procuracy;
- State Audit;
- National Finance Supervision Board;
- Social Policy Bank;
- Vietnam Development Bank;
- National Vietnam Fatherland Front;
- National headquarters of various mass organizations;
- Gov. Office: Minister, Vice Ministers, PM's aide, website general manager, affiliated departmental agencies, Official Gazette;
- Filing: Corres. etc.

For the GOVERNMENT
PRIME MINISTER

Nguyen Xuan Phuc